BOLDER HR SOLUTIONS, L.L.C.

CONSULTING SERVICES AGREEMENT

This Consulting Services Agreement (this "Agreement") is entered into as of the Effective Date set forth below, by and between Bolder HR Solutions, L.L.C. ("Bolder HR Solutions"), a Colorado limited liability company, and Town of Nederland, a Colorado statutory municipality ("Client"), (individually "Party" and collectively "Parties"). For good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. Scope of Work. Bolder HR Solutions has agreed to offer the services ("Services") listed in the attached Services Proposal with its associated Timeline and Price List.

2. Independent Contractor. The manner and means by which Bolder HR Solutions chooses to complete the items listed in the Services Proposal are in Bolder HR Solutions' sole discretion and control, however Bolder HR Solutions agrees to consult with Client regarding the same. In completing the Services, Bolder HR Solutions agrees to provide its own equipment, tools and other materials and to do so at its own expense. With approval of Client, which approval shall not be unreasonably withheld, Bolder HR Solutions may subcontract or otherwise delegate its obligations under this Agreement. In addition, Bolder HR Solutions hereby acknowledges and agrees that it will pay all taxes for any fees paid to Bolder HR Solutions by Client. Neither Party shall have any obligation for any tax upon the other Party's real, personal or intangible property or upon the other Party's net income.

3. Fees/Taxes. Client shall compensate Bolder HR Solutions for the Services set forth in the attached Services Proposal. Bolder HR Solutions will invoice Client, and Client will pay said invoice within 30 days of the date of Bolder HR Solutions' invoice. Certain additional expenses may be necessary for performing the Services. No expenses shall be incurred on behalf of Client without Bolder HR Solutions receiving prior written approval from Client.

4. Work Product. To the extent that the Services provided by Bolder HR Solutions result in tangible items being delivered to Client, those items are the property of the Client and shall be considered Work Product under this Agreement. Work Product shall not include the following: a) any and all information used by Bolder HR Solutions in performance of any Project that is the property of a third Party and that has been licensed to Bolder HR Solutions or for which Bolder HR Solutions has otherwise received authority for use; b) any and all programs, processes, forms, formats, formulas, spreadsheets and/or other tools created by Bolder HR Solutions prior to or during performance of Projects for Client that are not specific to Client but, rather, that are tools of Bolder HR Solutions' work in the field of providing wellness solutions for companies; and c) any and all information provided to Client by Bolder HR Solutions which is either directly taken from or is derived from the public domain.

5. Representations and Warranties. Bolder HR Solutions represents and warrants that: (a) Bolder HR Solutions has full power and authority to enter into and perform this Agreement; (b) all right, title and interest in and to all Work Product, with the exception of items excluded above, is fully assignable to Client, as appropriate under The Services Proposal; and (c) to

Bolder HR Solutions' knowledge and belief, neither the Work Product nor any element thereof infringes or misappropriates the intellectual property rights of any third Party; and (d) Bolder HR Solutions is not in breach of any of its third Party agreements or obligations by performing the Services under this Agreement and the attached Services Proposal.

6. Confidential Information. Subject to applicable law, each Party agrees to receive and hold any Confidential Information in strict confidence. Each Party also agrees: (i) to protect and safeguard the Confidential Information against unauthorized use, publication or disclosure; (ii) not to reveal, report, publish, disclose, transfer, copy or otherwise use any Confidential Information except as specifically authorized by the other Party; (iii) not to use any Confidential Information for any purpose other than for performance under this Agreement; (iv) to restrict access to Confidential Information to those of its employees, agents, and contractors who have a need to know, who have been advised of the confidential nature thereof, and who are under express written obligations of confidentiality or under obligations of confidentiality imposed by law or rule; and (v) to exercise at least the same standard of care and security to protect the Confidential Information received by it as it protects its own confidential information. If a Party is requested or required in a judicial, administrative, or governmental proceeding to disclose any Confidential Information, it will notify the other Party as promptly as practicable so that such Party may seek a protective order or waiver for that instance.

Confidential Information shall not include information which: (i) is or becomes public knowledge through no fault of either Party; (ii) was in a Party's possession before receipt from the other Party; (iii) is rightfully received by a Party from a third party without any duty of confidentiality; (iv) is independently developed by a Party without use or reference to the other Party's Confidential Information; or (v) is disclosed with the prior written consent of the Parties.

Each Party shall return or destroy the Confidential Information upon written request by the other Party; provided, however, that each Party may retain one copy of the Confidential Information in order to comply with applicable law.

7. Indemnification. Bolder HR Solutions shall indemnify, defend and hold harmless Client from any and all claims, losses, liabilities, damages, fees, expenses and costs (including attorneys' fees and court costs) which result from a breach or alleged breach of any representation or warranty of Bolder HR Solutions or the negligence or willful misconduct of Bolder HR Solutions or Bolder HR Solutions' employees, subcontractors or agents (a "Claim"). Likewise, Client shall indemnify, defend and hold harmless Bolder HR Solutions from any and all claims, losses, liabilities, damages, fees, expenses and costs (including attorneys' fees and court costs) which result from the action or inaction of Client including, but not limited to, any negligence or willful misconduct of Client or Client's employees, subcontractors or agents (also "Claim"). The Parties shall notice of a Claim, and the indemnified Party shall have the right to participate in the defense of any such Claim at its expense.

8. Term and Termination. The term of this Agreement will begin on the Effective Date, and shall extend until terminated as set forth herein. Either Client or Bolder HR Solutions may terminate this Agreement for any reason upon 15 days prior written notice to the non-terminating Party. Upon termination, Bolder HR Solutions will provide all Work Product paid for by Client to date to the Client or shall refund Client's money for said Work Product, at Bolder HR

Solutions' discretion. Likewise, upon termination by Client, Client shall make payment to Bolder HR Solutions for Services rendered to date of termination.

9. Governing Law. This Agreement shall be governed by the laws of the State of Colorado, without regard to any of its conflict of laws provisions that would cause the laws of another jurisdiction to apply. Any action or proceeding arising from or relating to this Agreement will be brought in a federal court in Denver, Colorado or state court in Boulder, Colorado, and each Party irrevocably submits to the jurisdiction and venue of any such court in any such action or proceeding. If any legal action is brought to enforce this Agreement, the prevailing Party shall be entitled to receive its costs, expenses and reasonable attorneys' fees, in addition to any other relief it may receive.

10. Article X, Section 20/TABOR. The Parties understand and acknowledge that the Town is subject to Article X, § 20 of the Colorado Constitution ("TABOR"). The Parties do not intend to violate the terms and requirements of TABOR by the execution of this Agreement. It is understood and agreed that this Agreement does not create a multi-fiscal year direct or indirect debt or obligation within the meaning of TABOR and, therefore, notwithstanding anything in this Agreement to the contrary, all payment obligations of the Town are expressly dependent and conditioned upon the continuing availability of funds beyond the term of the Town's current fiscal period ending upon the next succeeding December 31. Financial obligations of the Town payable after the current fiscal year are contingent upon funds for that purpose being appropriated, budgeted, and otherwise made available in accordance with the rules, regulations, and resolutions of Town of Nederland, and other applicable law. Upon the failure to appropriate such funds, this Agreement shall be terminated.

11. Entire Agreement/Severability. This Agreement is the entire agreement of the Parties, and no other agreements, whether verbal or written, outside of this Agreement shall govern unless such agreements are in writing and signed by both Parties. In the event that any provision of this Agreement shall be determined to be illegal or unenforceable, that provision shall be limited or eliminated to the minimum extent necessary so that this Agreement will otherwise remain in full force and effect.

12. Notices. All notices or reports permitted or required under this Agreement shall be in writing, delivered by personal delivery, electronic mail, facsimile transmission or by certified or registered mail, return receipt requested, and shall be deemed given upon personal delivery, five (5) days after deposit in the mail, or upon acknowledgment of receipt of electronic transmission.

13. Waiver. No waiver by Bolder HR Solutions of any breach of this Agreement will be a waiver of any preceding or succeeding breach. No waiver by Bolder HR Solutions of any right under this Agreement will be construed as a waiver of any other right.

By signatures of their duly authorized representatives, the parties hereby agree to be bound by the terms of this Consulting Services Agreement and to make it Effective as of 10/6/2025:

Bolder HR Solutions, L.L.C.:	Town of Nederland, Colorado
By: Susan Fattor	By: Jonathan Cain Jonathan Cain (Oct 13, 2025 16:00:56 MDT)
Name: Susan N. Fattor	Name: Jonathan Cain
Title: Principal/owner	Title: Town Manager
Date: 10/6/2025	Date: 13/10/2025

EXHIBIT A

Project Assignment #1 Under Consulting Agreement
Project: HR transition consulting services – Eldora Mountain Resort

Consultant shall provide professional human resources consulting services to Client in anticipation of the acquisition and in preparation for the transition of employees. The focus will be on ensuring compliance and continuity of employment at closing ("Day 0") and supporting the immediate transition period, with flexibility to assist in strengthening foundational HR practices.

Scope of Work

1. Employer of Record Transition

- Collaborate with the Town Manager and legal counsel to support the Town's assumption of employer-of-record responsibilities for employees transferring from Eldora/Powdr.
- Provide advisory and hands-on support to help implement the steps necessary for the transfer of employees.
- Identify potential compliance considerations and provide recommendations to mitigate risks, with final determinations to be made by the Town.

2. Employee Handbook & Policies

- Review and provide recommendations on updates to the Town's Employee Handbook, in partnership with legal counsel.
- Draft an Eldora-specific addendum to address policies and conditions unique to seasonal and year-round mountain operations staff.
- Provide revisions to align policies with federal law, Colorado Revised Statutes, and applicable local requirements, in consultation with legal counsel.
- Deliverable: A revised Employee Handbook with Eldora addendum, prepared in coordination with legal counsel and ready for adoption and distribution.

3. Transition Support

- Assist the Town in planning and coordinating the transition of employees into Town operations.
- Provide consultation and support through Day 90 to help align payroll, benefits, and policies for transferred employees.
- Remain available to Town leadership for HR-related guidance as transition needs arise.

4. HR Department Building Blocks (Supportive Role)

To support the long-term development of the Town's HR function, the Consultant may assist in the creation or review of core HR processes and materials, including:

- Reviewing existing job descriptions and classifications, and coordinating with Eldora HR staff to identify and flag potential issues.
- Recommending supplemental HR policies or procedures to strengthen consistency, fairness, and adherence to established requirements.
- Advising on long-term HR staffing needs and departmental structure to help ensure sustainable capacity.

Deliverables

- Updated Employee Handbook with Eldora addendum (developed in partnership with legal counsel).
- Day 0 transition and integration support.
- HR process guidance (onboarding/offboarding, job description review, supplemental policies, HR structure recommendations), provided in a collaborative and supportive role.

Deliverables

- Updated Employee Handbook with Eldora addendum (developed in partnership with legal counsel).
- Day 0 transition and integration support.

Fees and Reimbursement:

Cash Fee: $150.00 per hour.

Consultant will be reimbursed for third party expenses (at cost) if approved in writing in advance by Client.

Consultant will invoice Client monthly for services and expenses and will provide such reasonable receipts or other documentation of expenses as Client might request, including copies of time records.

Payment terms: Client will be invoiced on the first day of each month for services rendered and expenses incurred during the previous month.

Signature: Jennifer Madsen

Email: [redacted]

Professional Services Agreement

Final Audit Report 2025-10-20

Created:	2025-10-06
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